



Bill Number: S.B. 1111

Hoffman Floor Amendment

**Reference to: APPROPRIATIONS, TRANSPORTATION &
TECHNOLOGY S/E Committee Amendment**

Amendment drafted by: Anna Nguyen

FLOOR AMENDMENT EXPLANATION

1. Narrows the authority of a law enforcement agency to use an automated license plate reader to only detect government vehicles inside property owned, leased or operated by the state, a state agency, city, town, county, law enforcement agency or political subdivision of the state that is enclosed by a wall, fence or other permanent barrier and that does not allow the automated license plate reader to have visual access to the adjacent public rights of way or members of the general public in any way.
2. Subjects a governmental agency that violates the use of the automated license plate reader to a civil penalty of between \$25,000 and \$250,000 for each violation.
3. Specifies that each day a violation continues constitutes a separate offense.
4. Allows a person whose plate data is captured, stored or shared in violation of the use of an automated license plate reader a private right of action for actual damages, statutory damages or \$1,000 per violation.
5. Redefines *automated license plate reader* to mean a technology that provides stationary or mobile automated detection of government vehicle license plates inside property owned, leased or operated by the state, a state agency, city, town, county, law enforcement agency or political subdivision of the state that is enclosed by a wall, fence or other permanent barrier and that does not allow the automated license plate reader to have visual access to the adjacent public rights of way or members of the general public in any way and that captures data associated with license plates for official law enforcement purposes.
6. Redefines *official law enforcement purposes* to mean the identification of government vehicle license plates inside property owned, leased or operated by the state, a state agency, city, town, county, law enforcement agency or political subdivision of the state that is enclosed by a wall, fence or other permanent barrier and that does not allow the automated license plate reader to have visual access to the adjacent public rights of way or members of the general public in any way.

HOFFMAN FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1111

(Reference to APPROPRIATIONS, TRANSPORTATION AND TECHNOLOGY S/E Committee amendment)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Strike everything after the enacting clause and insert:

3 "Section 1. Title 28, chapter 3, Arizona Revised Statutes, is
4 amended by adding article 23, to read:

5 ARTICLE 23. AUTOMATED LICENSE PLATE READERS

6 28-1241. Definitions

7 IN THIS ARTICLE, UNLESS THE CONTEXT OTHERWISE REQUIRES:

8 1. "AUTOMATED LICENSE PLATE READER" MEANS A TECHNOLOGY THAT
9 PROVIDES STATIONARY OR MOBILE AUTOMATED DETECTION OF [GOVERNMENT VEHICLE]
10 LICENSE PLATES [INSIDE PROPERTY OWNED, LEASED OR OPERATED BY THIS STATE,
11 OR A STATE AGENCY, CITY, TOWN, COUNTY, LAW ENFORCEMENT AGENCY OR POLITICAL
12 SUBDIVISION OF THIS STATE THAT IS ENCLOSED BY A WALL, FENCE OR OTHER
13 PERMANENT BARRIER AND THAT DOES NOT ALLOW THE AUTOMATED LICENSE PLATE
14 READER TO HAVE VISUAL ACCESS TO THE ADJACENT PUBLIC RIGHTS OF WAY OR
15 MEMBERS OF THE GENERAL PUBLIC IN ANY WAY] AND THAT CAPTURES DATA
16 ASSOCIATED WITH LICENSE PLATES FOR OFFICIAL LAW ENFORCEMENT PURPOSES.

17 2. "OFFICIAL LAW ENFORCEMENT PURPOSES" INCLUDES THE IDENTIFICATION
18 OF [STOLEN OR WANTED VEHICLES, STOLEN LICENSE PLATES, HUMAN TRAFFICKING
19 AND MISSING PERSONS, THE GATHERING OF INFORMATION RELATED TO ACTIVE
20 WARRANTS, SUSPECT INTERDICTION AND STOLEN PROPERTY RECOVERY] [GOVERNMENT
21 VEHICLE LICENSE PLATES INSIDE PROPERTY OWNED, LEASED OR OPERATED BY THIS
22 STATE, OR A STATE AGENCY, CITY, TOWN, COUNTY, LAW ENFORCEMENT AGENCY OR
23 POLITICAL SUBDIVISION OF THIS STATE THAT IS ENCLOSED BY A WALL, FENCE OR
24 OTHER PERMANENT BARRIER AND THAT DOES NOT ALLOW THE AUTOMATED LICENSE
25 PLATE READER TO HAVE VISUAL ACCESS TO THE ADJACENT PUBLIC RIGHTS OF WAY OR
26 MEMBERS OF THE GENERAL PUBLIC IN ANY WAY].

1 28-1242. Automated license plate readers; allowable uses;
2 training; authorized access

3 A. A LAW ENFORCEMENT AGENCY SHALL USE AN AUTOMATED LICENSE PLATE
4 READER ONLY FOR THE FOLLOWING PURPOSES:

5 1. LEGITIMATE AND OFFICIAL LAW ENFORCEMENT PURPOSES.

6 ~~[2. IN CONJUNCTION WITH ANY PATROL OPERATION OR CRIMINAL LAW~~
7 ~~ENFORCEMENT INVESTIGATION.~~

8 ~~3. CANVASSING LICENSE PLATES AROUND ANY CRIME SCENE.~~

9 ~~4. CHECKING ANY PARTIAL LICENSE PLATE NUMBER REPORTED DURING A~~
10 ~~MAJOR CRIME TO IDENTIFY PERSONS OF INTEREST.]~~

11 ~~[2. TO MONITOR GOVERNMENT OWNED VEHICLES INSIDE PROPERTY OWNED,~~
12 ~~LEASED OR OPERATED BY THIS STATE, OR A STATE AGENCY, CITY, TOWN, COUNTY,~~
13 ~~LAW ENFORCEMENT AGENCY OR POLITICAL SUBDIVISION OF THIS STATE THAT IS~~
14 ~~ENCLOSED BY A WALL, FENCE OR OTHER PERMANENT BARRIER AND THAT DOES NOT~~
15 ~~ALLOW THE AUTOMATED LICENSE PLATE READER TO HAVE VISUAL ACCESS TO THE~~
16 ~~ADJACENT PUBLIC RIGHTS OF WAY OR MEMBERS OF THE GENERAL PUBLIC IN ANY~~
17 ~~WAY.]~~

18 B. IF PRACTICABLE, A LAW ENFORCEMENT OFFICER SHALL VERIFY AN
19 AUTOMATED LICENSE PLATE READER RESPONSE THROUGH AN AUTHORIZED CENTRAL LAW
20 ENFORCEMENT DATABASE THAT IS ACCESSIBLE TO LAW ENFORCEMENT OFFICERS IN
21 THIS STATE BEFORE TAKING ENFORCEMENT ACTION BASED ONLY ON AN ALERT FROM AN
22 AUTOMATED LICENSE PLATE READER.

23 C. AN EMPLOYEE OF A LAW ENFORCEMENT AGENCY MAY NOT OPERATE AN
24 AUTOMATED LICENSE PLATE READER UNTIL THE EMPLOYEE SUCCESSFULLY COMPLETES
25 LAW ENFORCEMENT AGENCY-APPROVED TRAINING FOR THE AUTOMATED LICENSE PLATE
26 READER.

27 D. AN OPERATOR OF AN AUTOMATED LICENSE PLATE READER MAY NOT ACCESS
28 DATA FROM AN AUTHORIZED CENTRAL LAW ENFORCEMENT DATABASE THAT IS
29 ACCESSIBLE TO LAW ENFORCEMENT OFFICERS IN THIS STATE OR A NATIONAL LAW
30 ENFORCEMENT DATABASE UNLESS THE OPERATOR IS AUTHORIZED TO ACCESS THE DATA.

31 E. DATA FROM AN AUTOMATED LICENSE PLATE READER MAY NOT BE ACCESSED
32 UNLESS A TRACKABLE CRIMINAL CASE NUMBER OR A TRACKABLE INCIDENT NUMBER IS
33 PROVIDED FOR THE DATA BEING ACCESSED.

34 28-1243. Automated license plate readers; data and image
35 collection; requirements; violation;
36 classification

37 A. ALL DATA AND IMAGES COLLECTED BY AN AUTOMATED LICENSE PLATE
38 READER ARE FOR OFFICIAL USE BY THE LAW ENFORCEMENT AGENCY THAT COLLECTED
39 THE DATA AND IMAGES.

40 B. ANY DATA OR IMAGES COLLECTED BY AUTOMATED LICENSE PLATE READERS
41 ARE NOT SUBJECT TO A PUBLIC RECORDS REQUEST, EXCEPT A LAW ENFORCEMENT
42 AGENCY SHALL SHARE ANY DATA OR IMAGES COLLECTED BY AN AUTOMATED LICENSE
43 PLATE READER PURSUANT TO A DULY AUTHORIZED SUBPOENA OR ANY OTHER LAW.

44 C. A LAW ENFORCEMENT AGENCY THAT OPERATES AN AUTOMATED LICENSE
45 PLATE READER IS RESPONSIBLE FOR ENSURING PROPER COLLECTION AND RETENTION
46 OF THE DATA AND IMAGES COLLECTED.

47 D. A THIRD PARTY THAT INTENTIONALLY RELEASES ANY AUTOMATED LICENSE
48 PLATE READER DATA OR IMAGES WITHOUT AUTHORIZATION FROM THE LAW ENFORCEMENT
49 AGENCY THAT COLLECTED THE DATA IS GUILTY OF A CLASS 1 MISDEMEANOR AND

1 SHALL PAY A FINE OF NOT LESS THAN \$500 PER IMAGE OR DATA RELEASED, EXCEPT
2 THAT A THIRD PARTY THAT PROVIDES AN AUTOMATED LICENSE PLATE READER TO A
3 LAW ENFORCEMENT AGENCY MAY DISCLOSE DATA OR IMAGES COLLECTED BY THE
4 AUTOMATED LICENSE PLATE READER PURSUANT TO A DULY AUTHORIZED SUBPOENA,
5 WARRANT OR COURT ORDER.

6 E. A LAW ENFORCEMENT AGENCY THAT USES AN AUTOMATED LICENSE PLATE
7 READER SHALL:

8 1. ENSURE ALL AUTOMATED LICENSE PLATE READER DATA THAT IS
9 DOWNLOADED IS ACCESSIBLE ONLY THROUGH A PASSWORD-PROTECTED SYSTEM CAPABLE
10 OF DOCUMENTING ALL ACCESS INFORMATION BY THE NAME OF THE PERSON WHO
11 ACCESSED THE DATA AND THE DATE AND TIME OF ACCESS.

12 2. ENSURE ANY PERSON WHO IS APPROVED TO ACCESS AUTOMATED LICENSE
13 PLATE READER DATA AND IMAGES PURSUANT TO THIS ARTICLE IS ALLOWED TO ACCESS
14 THE DATA AND IMAGES ONLY FOR OFFICIAL LAW ENFORCEMENT PURPOSES.

15 3. RELEASE AUTOMATED LICENSE PLATE READER DATA AND IMAGES TO OTHER
16 AUTHORIZED AND VERIFIED LAW ENFORCEMENT OFFICIALS AND AGENCIES FOR
17 OFFICIAL LAW ENFORCEMENT PURPOSES ONLY IF THE DATE AND TIME OF ACCESS TO,
18 THE REASON FOR ACCESS TO AND THE NAME OF THE AGENCY THAT ACCESSED THE
19 AUTOMATED LICENSE PLATE READER DATA AND IMAGES ARE DOCUMENTED IN THE
20 SYSTEM, UNLESS THE LAW ENFORCEMENT AGENCY'S POLICIES PROHIBIT THE RELEASE
21 OF LICENSE PLATE READER DATA AND IMAGES.

22 4. PERFORM ANNUAL SYSTEM AUDITS OF THE LAW ENFORCEMENT AGENCY'S
23 AUTOMATED LICENSE PLATE READER SYSTEM.

24 <<28-1244. Violations; penalties

25 A. A GOVERNMENTAL AGENCY THAT VIOLATES THE USE OF THE AUTOMATED
26 LICENSE PLATE READER IS SUBJECT TO A CIVIL PENALTY OF NOT LESS THAN
27 TWENTY-FIVE THOUSAND DOLLARS AND NOT MORE THAN TWO HUNDRED FIFTY THOUSAND
28 DOLLARS FOR EACH VIOLATION.

29 B. EACH DAY THAT A VIOLATION CONTINUES CONSTITUTES A SEPARATE
30 OFFENSE.>>

31 <<28-1245. Private right of action

32 A PERSON WHOSE PLATE DATA IS CAPTURED, STORED OR SHARED IN VIOLATION
33 OF THE USE OF AN AUTOMATED LICENSE PLATE READER MAY BRING A CIVIL ACTION
34 FOR ACTUAL DAMAGES. STATUTORY DAMAGES OF ONE THOUSAND DOLLARS PER
35 VIOLATION, REASONABLE ATTORNEY FEES AND INJUNCTIVE RELIEF.>>"

36
37 Enroll and engross to conform

38 Amend title to conform

JAKE HOFFMAN

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